

Raigarh Works
Village & P.O.: Naharpali,
Tehsil-Kharsia
Kharsia-496661
Raigarh-Chhattisgarh (India)

Vendor Code : 0010000055
Name : BHARAT BIJLEE LTD
Address : NO. 2, MIDC, THANE BELAPUR ROAD, AIROLI
NAVI MUMBAI-400708-Maharashtra-India
E-mail : SWAPNIL.MATKAR@BHARATBIJLEE.COM
PAN NO : AAACB2900K
GST No. : 27AAACB2900K1ZZ
Bank Account : 016030110000015
Ph.No : 8080020330 Mb.No. :- 9029526506
Fax No. : 022 6145 7334

P.O.No.:4100564927
P.O.Date:17.06.2026
Type:REV-DOM
Contact:BTCADMIN_MM
Outline Agreement no.:6200004507
LD applicable:YES

Dear Sir/Madam,

We are pleased to place order against your Ref. Quote No. Dated: WS5594694470 , as per below mentioned PRICE, terms & conditions.

ALL THE PRICES MENTIONED BELOW ARE IN #INR#							
SR. NO.	ITEM CODE DESCRIPTION LONG DESCRIPTION / SPECIFICATION	UOM	QTY.	UNIT PRICE	TOTAL BASE VALUE	TOTAL VALUE	DELIVERY SCHEDULE
1	2200036391 MOT,LT ELECTRIC AC,IE3,SQ CAGE,15KW	EA	2.000	76044.850	152089.70	179465.70	11.10.2026
MOTOR,CATEGORY:LT ELECTRIC AC;EFFICIENCY:IE3;TYPE:SQ CAGE;POWER RATING:15 KW;VOLTAGE RATING:415 VAC;CURRENT RATING:26 A;FREQUENCY:50 HZ;PHASE:3 PH;POLE:6 P;INGRESS PROTECTION:IP55;COOLING METHOD:IC411;MOUNTING:B3;INSULATION CLASS:F;FRAME SIZE:180ML;DUTY CYCLE:S1;METHOD OF CONTROL:VFD;TERMINAL BOXLOCATION:TOP;AMBIENT TEMPERATURE:50 DEG C							
Total Duties/Taxes & Charges: TAX IGST @ 18% - 27376.00							
Total Base Value : 152089.70		Total Taxes / Charges :27376.00			Total PO Value :179465.70		
Total Value (In Words):One lakh seventy nine thousand four hundred sixty five Rupees seventy Paise							
PRICE BASIS:FOR JSW SITE							
PAYMENT TERMS:Payment in 30 days of inv subj to Recpt&acceptance							
1. GST is effective from 01st July 2017 as per applicable act. 2. Please quote our purchase order and Send all Documents i.e. GST Invoice, Challan, Test Certificates along with supply to avoid delay in payment. 3. Execute this order in accordance with the prices, terms, delivery method, and specifications listed above and as per annexure if any. 4. Please notify us immediately if you are unable to ship as specified. 5. JSW Steel Ltd is an environment friendly company. Your acceptance of Order assumes that your services will not cause any environmental damage 6. Send all correspondence to: BTCADMIN MM Email - prakash.kumar@jsw.in Phone Fax:							

Thanking You
Yours sincerely,
FOR JSW STEEL LIMITED



Plant GST No : 22AAACJ4323N1ZQ ; PAN : AAACJ4323N ; CIN :L27102MH1994PLC152925

You shall comply with the Business Responsibility/Sustainability policies of JSW Steel Limited which can be referred to on our website: "<https://www.jsw.in/groups/sustainability-policies>"

You hereby affirm that the Supplier Code of Conduct has been read (at <https://bit.ly/31Yip6E>) and understood, and that it is agreed upon to comply unconditionally with the provisions of the Code stated therein.

PR No.:1600644809

Thanking You
Yours sincerely,
FOR JSW STEEL LIMITED

A handwritten signature in dark ink, appearing to read 'Kiran', is written over a light gray rectangular background.

GST CLAUSES FOR PURCHASE AGREEMENTS**GST TAX INVOICE, CREDIT AND DEBIT NOTES:**

a) The supplier / service provider / contractor (herein after referred as Vendor) shall comply with Section 31 of the CGST Act read with Chapter VI (Rules 46 to 55A) of the CGST Rules, 2017 for Tax Invoice, Debit Note, Credit Note etc. In the event, the supplier fails to provide the Tax Invoice, Debit Note, Credit Note etc. in the form and manner as prescribed under GST Law, M/s. JSW Steel Limited (hereinafter referred as JSW), reserves the right, not to make any payment against such Invoice. Further, Bill from address in the Tax Invoice/Debit Note/Credit Note should be strictly in line with the address as specified in the purchase Order. The Vendor should submit the Tax invoice, Debit Note, Credit Note etc., to JSW, within 30 days from the date of the document.

b) The Vendor shall issue Tax invoice with minimum particulars as mentioned in rule 46 of the CGST Rules, 2017, mainly: a) Name, address and GSTIN of Vendor; b) Consecutive serial number of the Tax Invoice not exceeding 16 characters including all special characters; c) Date of Issue of the Tax Invoice; d) Name, address and GSTIN of recipient i.e. JSW (Our GSTIN is 33AAACJ4323N1ZN); g) HSN of goods/services; h) Description of goods/services; i) Quantity and Unit of measurement (UoM) /Unique Quantity Code (UQC); j) Total value of supply of goods or services or both; k) Taxable value of supply including discount/abatement, if any; l) Rate of tax (CGST + SGST for Intra State) and (IGST - for Inter State), m) Amount of tax charged; n) Place of supply along with the name of the state and state code; o) Address of delivery where the same is different from the place of supply (where goods are delivered at a place other than JSW's Purchase Order (PO) premises, such address of delivery should be mentioned). p) Tax liability under Reverse Charge (RCM) - If the liability to pay GST is under Reverse Charge, the same should be mentioned by the Vendor in his Tax invoice. q) Signature or Digital Signature of Vendor/authorised representative; r) Quick Response code (QR Code), having embedded Invoice Reference Number (IRN) in it has to be issued, in case where Tax invoice has been issued in the manner prescribed under rule 48 of the CGST Rules, 2017 (Please refer E-invoice clause for further details).

c) Supply should ensure that all the above said particulars furnished on the invoice raised are properly disclosed in GSTR-1 filed by them.

d) DEBIT NOTE & CREDIT NOTE: Minimum particulars as specified under rule 53 of CGST rules, 2017 should be mentioned. (Also, please refer E-invoice clause for further details).

e) BILL OF SUPPLY: Minimum particulars as specified under rule 49 of the CGST Rules, 2017 should be mentioned. Bill of Supply is to be submitted by a Composition Dealer or supply of exempted goods and services only. No GST should be charged on Bill of Supply.

2) E-INVOICE: The Vendor whose aggregate turnover in a financial year exceeds 5 Crores rupees [Refer Notification No.10/2023-Central Tax dated 10.05.2023] or such other turnover limit, the Govt. may notify from time to time, shall issue the Tax Invoice, Debit Note and Credit Note, in terms of rule 48 of the CGST Rules, 2017 by including such particulars contained in FORM GST INV-01 after obtaining an Invoice Reference Number (IRN) and QR Code by uploading information contained therein on the GST Common Electronic Portal. Tax invoice/debit note/credit note

Thanking You
Yours sincerely,
FOR JSW STEEL LIMITED



issued by any manner other than the manner specified under rule 48, by a person to whom E-Invoice rule applies, shall not be treated as a Tax invoice/Debit Note/Credit Note and JSW reserves the right not to make any payment against such documents.

3) E-WAYBILL: The Vendor shall ensure that proper E-way bill is generated as specified under Rule 138 of the CSGT Rules and the transporter of goods is in possession of the E-Waybill and a copy of the Tax invoice issued thereunder at all the time during the goods are in transit. JSW will not be responsible for any interest, penalty, etc. levied by the Tax authorities for non-compliance of the E-way bill provisions.

4) PAYMENT OF TAX & FILING OF RETURN: The Vendor should ensure timely payments of all taxes and be responsible for filing all necessary tax returns i.e. GSTR-1(Outward Supplies)/IFF (Invoice Furnishing Facility) and GSTR-3B (Monthly Return) well 'BEFORE THE DUE DATES' as prescribed under the GST Act and Rules made thereunder and deposit the GST amount charged on the invoice with the Government Treasury to enable JSW in availing the input tax credit on time. JSW will not be responsible for any liability of taxes, interest or penalty that may arise to the Vendor due to non-compliance of the aforesaid provisions under the GST law.

5) MATCHING WITH 2B REPORT: The details uploaded by the Vendor in their GSTR 1/IFF report should appear in GSTR-2B of the company as eligible credit. In case, such details are not available or, not in line with the tax invoice raised by the supplier in any manner or, it qualifies as non-available credit in GSTR-2B report as outlined in the section 38 of CGST Act, then JSW has right to hold the payment and recover GST credits withheld, interest, penalty etc. from the supplier for the loss incurred by the JSW in this regard. Please note, it is sole responsibility of the supplier to ensure that all its supplies are available in GSTR 2B report of JSW and the same is in line with the Tax invoice submitted to JSW.

6) GST HOLD AND RELEASE:

It is the responsibility of the vendor to issue Tax Invoice in line with the PO (i.e., Bill from address, Tax Rate HSN Code etc.), file all its GST returns and pay appropriate Tax Liability to the GST Authorities well within the due date, as stated above. If the vendor does not issue the Tax Invoice in line the PO or, GST charged on the Tax Invoice/Debit Note is not reflected in the GSTR 2B report / Invoice management System of JSW for any reason whatsoever or, does not pay the full GST so charged on the Tax Invoice/Debit Note issued as per the provisions of GST Law, or the GST registration is cancelled, or there is an mismatch in the GST amount reflected in the GSTR 2B report / Invoice management System of JSW an amount equal to the GST charged on underlying supply along with interest and penalty (if any) will be retained/ deducted by JSW from the Vendor till such non-compliance continues. The said amount will be released only if such non-compliance is regularised well before 3 months from end of the Financial Year.

7) GST AMOUNT FORFEITURE:

If the vendor does not issue the Tax Invoice in line the PO or, GST charged on the Tax Invoice/Debit Note is not reflected in the GSTR 2B report / Invoice management System of JSW for any reason whatsoever or, does not pay the GST so charged on the Tax Invoice/Debit Note issued as per the provisions of GST Law, or the GST registration is cancelled, or there is an mismatch in the GST amount reflected in the GSTR 2B report / Invoice management

Thanking You
Yours sincerely,
FOR JSW STEEL LIMITED



System of JSW an amount equal to the GST charged on underlying supply along with interest and penalty (if any) will be retained/ deducted by JSW from the Vendor till such non-compliance continues. If vendor does not rectify such mistakes or does not make payment of tax to regularise such non-compliance or such non-compliance continued beyond 3 months (i.e. June) from end of the Financial Year, JSW shall not pay the GST amount so retained or deducted towards such supply.

8) **ANTI-PROFITEERING CLAUSE:** The Vendor also agrees to pass on all the benefits that may arise out of any reduction in rate of GST on any supply of goods or services or the benefit of input tax credit in terms of Section 171 of the CGST Act.

9) **PURE AGENT:** In cases where the Vendor acts as a "pure agent" of JSW, the valuation of such supply will be determined in terms of Rule 33 of the CGST Rules. Further, the Vendor agrees that expenses incurred by the Vendor will be indicated separately and no GST will be chargeable on reimbursements. The Vendor shall not hold any title of the goods or services, or both procured or supplied on behalf of JSW. He should not use such goods or services or both for his own interest. Further, he will receive only the actual amount incurred (without any mark-up) for procuring any goods or services on behalf of JSW, while acting as a pure agent.

10) **TAX DEDUCTED AT SOURCE(TDS):** TDS under the GST Act (Refer Section 51 of CGST Act and Rules made thereunder), if applicable, shall be deducted by JSW from the payment

made or credited to the Vendor of taxable goods or services or both as per the provisions of law.

11) **WARRANTY CLAUSE UNDER GST:**

a) The Seller represents and warrants that it shall maintain the compliance rating as prescribed under the GST law and adhere to all the provisions as prescribed thereunder, including but not limited to Time of supply, Place of supply, Value of supply, payment of tax and filing of applicable returns before the due dates. Further, JSW would not be responsible for any liability or taxes, interest and penalty that may arise due to non-compliance of aforesaid provisions of law in any manner.

b) In the event of improper/non reporting in GSTR-1/IFF and GSTR-3B returns (including any other monthly/quarterly/annual return as prescribed under the law), and/or, the Vendor does not deposit the GST charged on the Tax Invoice/Debit Note issued and/or, such GST charged on the Tax Invoice/Debit Note is not reflected in the GSTR-2A & GSTR 2B / Invoice management System of JSW for any reason whatsoever, an amount equal to the GST charged on underlying supply along with interest and penalty(if any) will be retained/ deducted by JSW till such non-compliance continues. In case the disputed GST amount is already been paid to the supplier, JSW has all right to take legal action against the supplier to recover the GST amount / disputed taxes including interest, penalty if any to ensure that there is no loss to JSW for supplier mistake.

c) Supplier shall indemnify JSW for any loss including but not limited to GST credits, interest, penalty either on account of non-availability of input tax credit, non-filing of GST returns, or any other issue that may arise under Section 38 or, due to any recovery proceedings initiated by the Govt.

Thanking You

Yours sincerely,

FOR JSW STEEL LIMITED



d) JSW reserves its right to seek information including but not limited to GST payments, filing of returns, availability of credits from the vendor.

e) Availment of the GST-input tax credit by JSW on the supply made would not be construed as the technical acceptance of the supplies made by the vendor. Acceptance of supplies are subject to other terms and conditions as specified in the Purchase order and terms and conditions thereon.

12) **RECOVERY OF TAX BY TAX AUTHORITIES:** Upon receipt of any notice in writing from the government authorities under any provisions of the GST law or any other law for recovery and/or, payment of Tax, etc., JSW shall act as mentioned in the notice only.

13) **GST Payment Linked to ITC Reflection in GSTR-2B :** The GST component of the Vendor invoice shall be released/paid only upon successful reflection of the corresponding Input Tax Credit (ITC) in the GSTR-2B of the relevant tax period, in accordance with Section 16(2)(aa) of the Central Goods and Services Tax Act, 2017 (as inserted by the Finance Act, 2021). The basic invoice value (excluding GST) will, however, be processed and paid as per the terms and conditions of this Purchase Order/MOU.

14) **Issuance and Reporting of Credit Notes :** Any GST-bearing credit note issued by the Vendor must reference the original invoice number and be duly reported in the GSTR-1 return. Failure to provide the correct original invoice reference#either in the same month or in the immediately following month#may lead to mismatches in Input Tax Credit (ITC) records, and such credit notes may be liable for rejection in the IMS system.

GENERAL TERMS AND CONDITIONS ("GTC") OF WORK ORDER / PURCHASE ORDER / SERVICE ORDER APPLICABLE TO THE GOODS, SERVICES OR WORK PROCURED, EXECUTED OR PERFORMED FOR JSW STEEL LIMITED

1. Definitions and Interpretations

The following words expressions mentioned in the Purchase Order/Service Order/Work Order shall have the meaning hereby assigned to them, except where the Purchase Order/Service Order/Work Order requires otherwise by context.

1.1. "Company / Buyer" and Supplier/Service Provider/ Contractor may hereinafter individually be referred as "Party" and collectively as "Parties"

1.2. "Applicable Law" shall mean all laws promulgated brought into force and effect by any Central or state Government of India including statutes, regulations, ordinances, rules, bye-laws or approvals, directives, certificates, licenses, consents, permits, guidelines, policies, made thereunder and judgments, decrees, injunctions, writs and orders of any court of record, tribunal, statutory/regulatory body or Authority, as may be in force or any similar form of a decision of, or determination by, or any interpretation or adjudication having the force of law of any of the foregoing, by any Authority having jurisdiction over the matter in question, whether in effect as of the Effective Date or at any time thereafter, as may be amended/ updated from time to time.

1.3. "Company / Buyer" shall mean JSW Steel Limited, a company incorporated and validly existing within the meaning of the Companies Act, 2013 and include and include its successors and assigns.

1.4. Confidential Information shall mean and include, without limitation, any and/or all records, notes, memoranda,

Thanking You

Yours sincerely,

FOR JSW STEEL LIMITED



data, writings, research, personnel data, information, customer information, clearing members' information of the Buyer and/or any affiliates' financial information and plans, processes, methods, techniques, systems, formulas, patents, models, devices, compilations, or any other information of whatever nature, whether in oral, written or electronic form, that has not been published or disclosed to the general public

1.5. "Personal Data" means and includes personal data, personal information, sensitive personal data or information and similar terms as defined under any Applicable Law, and includes deidentified or pseudonymized data and data sets derived using Personal Data.

1.6. "Processing" shall mean and include, with respect to Personal Data, collection, storage, and any other operation or activity performed in relation to or on Personal Data, including such operations as are defined to mean 'processing' under Applicable Law

1.7. "Supplier / Service Provider / Contractor" shall mean the entity undertaking the supplies, performance of services, execution of work in accordance with the terms of Order.

1.8. "LOI" / "Work Order" / "Purchase Order / Service Order" / "Order" hereinafter referred as Order, shall mean the document issued by Buyer identifying the scope of performance, price and other specifications relating to the Supplies or Works along with this General Terms and Conditions and the commercial terms and conditions, which are incorporated by reference

1.9. "Supplies" / "Services" / "Work", hereinafter referred to as Works, shall mean and include all the activities, including but not limited to supply, execution of work and rendering such services as more particularly described under the scope as per Order.

2. Acceptance of Terms:

2.1. The Order shall govern the contractual relationship between Buyer and the Supplier / Service Provider / Contractor to the exclusion of all the other terms and conditions, except if and to the extent otherwise expressly agreed in writing between Buyer and the Supplier / Service Provider / Contractor;

2.2. Unless otherwise agreed, acknowledgement of the Order, including without limitation, by commencing performance as stipulated under the Order, shall be deemed acceptance of the Order by the Supplier / Service Provider / Contractor agreed under the Order.

2.3. In case of any inconsistency, discrepancy, ambiguity or uncertainty, the specific conditions agreed under the Order and the special conditions thereunder shall prevail only to the extent contrary.

3. Disclaimer:

3.1. The Supplier / Service Provider / Contractor acknowledges that it has made a complete and careful examination as well as an independent evaluation of the scope, specifications, its commercial viability, standards (if any), local conditions, subsoil and geology, traffic volumes, suitability and availability of access routes, site conditions, Applicable Law & required compliances etc. The Supplier / Service Provider / Contractor has further determined to its satisfaction the nature and extent of difficulties, risks and hazards as the case maybe, that are likely to arise or affect the course of performance/ execution of the Works. Save and except the scope requisition or technical specifications provided by the Buyer as stated under the Order and agreed by the Supplier / Service Provider / Contractor, the Buyer makes no representation whatsoever, express, implicit or otherwise, regarding the accuracy, adequacy, correctness, reliability and/or completeness of any assessment, assumptions, statement or information provided by it and the Supplier / Service Provider / Contractor confirms that it shall have no claim whatsoever against Buyer in this regard. The Supplier/ Service Provider/ Contractor shall at all times be responsible to verify and highlight of any discrepancies and risks in the technical specification document prior to the execution of the Works.

4. Supplier's / Service Provider's / Contractor's Responsibilities:

4.1. Supplier / Service Provider / Contractor warrants to Buyer that:

(a) it shall execute the Works in conformity to the terms and conditions stipulated by Buyer in the Order and

Thanking You

Yours sincerely,

FOR JSW STEEL LIMITED



otherwise in relation thereto and in accordance with the applicable laws & regulations, as prevailing; with all appropriate skill and care, in accordance with the best industry practice, will be of good quality and fit for the intended purpose; and

(b) the Works shall be free of all defects (design, workmanship, etc.), any claims of whatsoever nature, including without limitation title claims, and will cause any lien or encumbrance asserted to be discharged, at its sole cost and expense, within thirty (30) days of its assertion.

(c) the Works executed by the Supplier / Service Provider / Contractor under this GTC will be under overall and direct supervision, coordination, control & guidance of the Supplier / Service Provider / Contractor and it shall be solely responsible to the Company/Buyer for the Works as contemplated under this Order. The Supplier / Service Provider / Contractor shall frame appropriate procedure for taking immediate action as may be advised by the Buyer from time to time.

4.2. Any attempt by Supplier / Service Provider / Contractor to limit, disclaim or restrict any such warranties or remedies by any acknowledgement or otherwise shall be null, void and ineffective. The warranties contained above are in addition to any other warranties required under the applicable law and no contrary disclaimer in this regard shall be valid or effective.

4.3. Supplier / Service Provider / Contractor shall promptly and at its own cost, carry out all remedial work necessary to enable Buyer to accept the Works executed under this Order or take necessary steps to remedy any deficiencies which occurred or were discovered within the warranty period / defect liability period commencing upon issuance of final acceptance certificate / commissioning certificate of the Works by Buyer, unless otherwise agreed between the parties.

4.4. Any re-performed work shall carry warranties on the same terms as set forth above, with the warranty period being the later of the original un-expired warranty period or the warranty on the re-performed works or parts.

4.5. Buyer reserves the right, at its sole discretion to vary, amend or modify, reduce, increase the scope in part or full, with respect to its quantity or scope on such terms and conditions as mutually agreed thereto. However, Buyer, upon being dissatisfied regarding the quality, progress and the non-performance of Work or non-compliance of any terms by the Supplier / Service Provider / Contractor may vary, amend or modify, reduce the scope, without assigning any reason. Such a decision of Buyer shall be final and binding on the Supplier / Service Provider / Contractor.

4.6. In no event shall Supplier / Service Provider / Contractor suspend the performance of work under this Order.

4.7. In case of conflict between applicable technical specifications, drawings, codes, and standards, the most stringent requirements shall apply. It shall be the responsibility of the Supplier / Service Provider / Contractor to identify any such deficiencies, omissions, contradictions, ambiguities, or conflicts between or within the Order, this GTC, and the applicable codes, regulations, and standards, and to notify Buyer of such deficiencies, omissions, contradictions, ambiguities or conflicts in writing within 5 (Five) days from issuance of the Order. The clarifications or determination given then by Buyer shall be final and binding on the Supplier / Service Provider / Contractor.

4.8. In case any activities, deliverables or works required to be performed, which are not explicitly stated as the Supplier's / Service Provider's / Contractor's responsibility, drawings/ specifications etc., but which are deduced therefrom and necessary for the proper performance of the Works by the Supplier / Service Provider / Contractor, the Supplier / Service Provider / Contractor shall render such performance without any claim for additional time and/or cost compensation.

4.9. Buyer reserves the right to inspect, test or reject any supplies, work, Works before acceptance. During inspection, if any deficiency or non-compliance is noted, then, Supplier / Service Provider / Contractor shall rectify such defects and/or remove and replace defective Works within reasonable time at its sole cost.

4.10. All Supplies must be properly packed and the package containing the Supplies and materials must be sufficiently strong to withstand rough handling. The Supplier / Service Provider / Contractor shall take suitable precautions and measures to protect the Supplies against dampness, moisture, rain, rust, shock and deformation etc. All packing material for packing of the Supplies will comply with all relevant statutory requirements and

Thanking You

Yours sincerely,

FOR JSW STEEL LIMITED



regulations.

5. BUYER'S Responsibilities:

5.1. In consideration of the proper performance by the Supplier / Service Provider / Contractor, Buyer shall pay to the Supplier / Service Provider / Contractor the undisputed Order price, against properly raised invoices.

6. Price, Taxes and Duties:

6.1. The Price as agreed between the Parties shall be the full and complete compensation for the Supplier's / Service Provider's / Contractor's performance of all its obligations, and includes without limitation, any and all direct, indirect and ancillary charges, costs and expenses of whatsoever nature necessary for compliance with the terms and performance. Unless specifically approved by Buyer in writing, it shall not be made liable for any escalation / overrun compensation, idling charges.

6.2. Supplier / Service Provider / Contractor shall be responsible to comply with all the Applicable Law in relation to the taxes, duties, etc. as may be applicable in relation to the Works.

6.3. The Supplier / Service Provider / Contractor is responsible to upload the details of Supplies/services made to Buyer, every month within the due date of filing GSTR-1 as prescribed under Section 37 of the CGST Act. In the event of the Supplier / Service Provider / Contractor not furnishing such details within the said due date, any tax demands on the Buyer from the Authorities, including but not limited to reversal of input tax credits in lieu of the Supplier / Service Provider / Contractor not declaring the outward supplies, shall be recovered from the Supplier / Service Provider / Contractor with interest and penalty.

7. Liquidated Damages:

7.1. Time is the essence for performance of Supplier's/ Service Provider's / Contractor's obligations. Notwithstanding anything to the contrary any extension granted, shall not be deemed as a waiver of the Liquidated Damages unless expressly stated otherwise.

7.2. The Supplier / Service Provider / Contractor will be required to meet the time schedule, delivery schedule / Bar Chart / milestone, performance guarantee parameters and also other obligations for supplies and service performance commitments as specified in the Order. There will be liquidated damages imposed on the Supplier / Service Provider / Contractor as specified under Order, if the Supplier / Service Provider / Contractor delays in performance or fails to fulfil the obligations / commitments / performance agreed hereunder.

7.3. The amount of liquidated damages as stated in the Order are an agreed genuine pre-estimate of the loss and damage that the Buyer will suffer if the Supplier / Service Provider / Contractor fails to fulfil the obligations in the manner and time schedule agreed hereunder and are not by way of penalty, provided always that the right to levy liquidated damages is in addition to and without prejudice to any other rights or remedies available to the Buyer under this Order, this GTC or any Applicable Laws.

7.4. The liquidated damages will be deducted from the invoices of the Supplier / Service Provider / Contractor or else can be adjusted from the Security Deposit if any or by invoking Bank Guarantee, if any.

7.5 Notwithstanding the right of Buyer to levy liquidated damages, Buyer shall also have the right to rescind/ terminate the Order partially or fully, at its sole discretion, in the event the maximum limit of liquidated damages are reached or the Supplier / Service Provider / Contractor grossly and/or willfully fails to achieve the time schedule or fails to fulfil the obligations / commitment agreed or to demonstrate expediting the performance and/or improving its performance.

8. Limitation of Liability:

8.1. Any limit of liability of Supplier / Service Provider / Contractor, as stated (whether individually, in the aggregate, or otherwise) under the Order or in any other document, shall be read to exclude any liability: (a) arising due to infringement of IPR, breach of Confidentiality, loss (or improper processing) of Personal Data or violation of Applicable Law relating thereto, fraud, gross negligence, or willful default, (b) indemnification including as may arise

Thanking You

Yours sincerely,

FOR JSW STEEL LIMITED



pursuant to Clause 17; or (c) any liability which cannot be limited by law.

8.2. The maximum liability of Buyer, at all times, shall be limited to the balance amount of consideration payable by the Buyer to the Supplier / Service Provider / Contractor after adjusting the consideration already paid. To the extent permitted by law, neither party shall have any liability (under contract, tort, statute or otherwise) to the other party for any indirect, consequential, exemplary, special, punitive or incidental losses, damages or costs.

9. Performance Security / Bank Guarantee:

9.1. Buyer may require the Supplier / Service Provider / Contractor to keep deposited with Buyer in advance such sum as agreed, as an interest-free refundable security deposit or performance bank guarantee as the case may be. The said security deposit shall be refunded, without any incidence of interest, after 3 months from the date of expiry or termination of the Warranty / Defect Liability Period, subject to deduction / adjustment of any damages, loss, expenses, costs or statutory payments, as the case may be, which are incurred or likely to be incurred by Buyer towards statutory compliance or due to the non-compliance, breach or default by the Supplier / Service Provider / Contractor.

9.2. All Bank Guarantees furnished by the Supplier / Service Provider / Contractor shall be irrevocable and unconditional, valid till 3 months after the expiry of Warranty / Defect Liability Period

9.3. The bank guarantee(s), as stated above, shall be issued by a reputed nationalized bank in India or from an International Bank having its branch in Mumbai, India registered with Reserve Bank of India and as is acceptable to Buyer. The bank guarantee(s) shall be furnished as per the format prescribed by Buyer.

9.4. Notwithstanding its other legal rights and remedy, Buyer reserves the right at its sole discretion, to encash the above Bank Guarantee(s) in case the Supplier / Service Provider / Contractor fails to deliver / complete the performance within the agreed time schedule or is in breach or default of its duties, obligations or terms of the Order or this GTC. For the avoidance of doubt, failure to extend the Bank Guarantees by the Supplier / Service Provider / Contractor shall be deemed as breach.

10. Best Price Guarantee:

The Supplier / Service Provider / Contractor must at all times render the performance at the most competitive Price/ unit rate and same as the lowest Price/ unit rate offered by it to any of its clients or customers. If at any time, it is discovered that the Supplier / Service Provider / Contractor renders performance of equal/ similar nature and scope at a unit rate/ price lower than that offered to the Buyer, within 12 months from the date issuance of the Order, then upon such discovery, such lower price/ unit rate shall be payable by Buyer for all such performance during the period when such lower price/ unit rate is in effect. Any determination by Buyer in this regard shall be final and binding on the Supplier / Service Provider / Contractor.

11. Transfer of Title and Risk:

The title for the Works or any part thereof shall be passed on to Buyer once the delivery is done at the delivery points of the Buyer in all respects as per the agreed timelines, specifications and other terms of this GTC and/or in accordance with agreed Incoterms 2020, is complete. The risk shall pass on to Buyer upon issuance of final acceptance certificate or commissioning certificate or as otherwise agreed between the Parties.

12. Suspension / Termination:

12.1. Buyer may terminate/ cancel the Order, at its sole discretion, at any time, without assigning any reason, and without being liable for any compensation, by giving 30 days written notice to the Supplier / Service Provider /

Thanking You
Yours sincerely,
FOR JSW STEEL LIMITED



Contractor. In such an event, Buyer shall pay to the Supplier / Service Provider / Contractor all undisputed invoices against such scope completed by the Supplier / Service Provider / Contractor which are accepted by Buyer.

12.2. Without prejudice to the provisions of clause 12.1 above, Buyer may at any time, by written notice terminate/ cancel the Order, subject to 7 days written notice, without being liable for any compensation, if: (i) The Supplier / Service Provider / Contractor or any of its personnel commits a breach, default or violations of the terms or covenants or condition of the Order or this GTC or fails to comply with any of its duties, obligations or undertakings on its part to be observed, performed or fulfilled; (ii) Delay in performance, poor performance, non-performance in accordance with the agreed time schedule and/ or the performance guarantee parameters; (iii) The Supplier / Service Provider / Contractor suspends, abandons the whole or part of the scope and its performance, contrary to the express terms herein; (iv) Any representation or warranty given by the Supplier / Service Provider / Contractor is found to be incorrect ; (v) initiation of dissolution, liquidation or winding-up (whether voluntary or compulsory) of Supplier / Service Provider / Contractor or appointment of an Interim Resolution Professional / Resolution Professional, receiver or manager of any of Supplier's / Service Provider's / Contractor's assets or Supplier / Service Provider / Contractor entering into any compromise or arrangement with its creditors; (v) Supplier / Service Provider / Contractor is blacklisted by any Government / Semi Government bodies..

12.3. Upon receipt of the notice of termination of the Order, the Supplier / Service Provider / Contractor shall promptly without any delay furnish all the relevant information to Buyer and shall hand over all the Confidential Information, data, documents, materials, goods, tools, equipment including free issued materials provided by Buyer to assist the Supplier / Service Provider / Contractor, within 15 (fifteen) days of receipt of such notice.

12.4. Upon termination of the Order, the Supplier / Service Provider / Contractor shall have no right to claim any compensation or damages against Buyer whatsoever.

12.5. In all such cases of termination due to default of the Supplier / Service Provider / Contractor, the security deposit or the Bank Guarantee(s) shall be forfeited / encashed and the Supplier / Service Provider / Contractor shall also be liable for damages / debarment / blacklisting.

12.6. Unless otherwise directed by the Buyer, the Supplier / Service Provider / Contractor agrees that the Supplier / Service Provider / Contractor shall continue to provide Services in the same manner during the notice period and co-operate with the Buyer for the smooth transition of this Order to any other party.

12.7. Buyer may order the Supplier/ Service Provider/ Contractor by prior written notice in writing to suspend all or any part of the performance for such period of time as may be determined by Buyer, at its sole discretion. The Supplier/ Service Provider / Contractor shall promptly suspend work to the extent specified, take proper care and protect all work in progress, materials, supplies and equipment etc. in its possession and control at its cost. The Parties shall mutually agree on reimbursement of any additional cost to the Supplier / Service Provider / Contractor, in case the suspension continues beyond the period of 90 working days.

13. Risk Purchase:

During the subsistence of this Order or after termination of the Order, Buyer reserves the right to engage any third party at any stage, at its sole discretion for the performance of the balance, delayed, defective or abandoned scope at the sole risk and cost of the Supplier / Service Provider / Contractor, if at any point of time, it is observed that the progress of Works is not as per delivery schedule / Bar Chart / milestone or the Supplier / Service Provider / Contractor is in breach of any obligation, non-performance, defect, which is not cured/ remedied by the Supplier / Service Provider / Contractor upon prior written notice by Buyer or if in the opinion of Buyer the Supplier/ Service Provider/ Contractor will not be able to perform the work entrusted to him/it or that undue delay is being caused by the Supplier / Service Provider / Contractor. Buyer shall be entitled to carry out any activities necessary to remedy the performance at the sole cost, expense and damages from the Supplier/ Service Provider / Contractor. This right is in addition to any other rights and remedies that Buyer may have under the Order, this GTC and under the law, including but not limited to termination.

14. Force Majeure:

14.1"Force Majeure" shall mean an event or circumstance or combination of events and circumstances which are

Thanking You
Yours sincerely,
FOR JSW STEEL LIMITED



beyond the reasonable control of the Parties which could not at the time of conclusion of these instruments be foreseen and that prevent either of them from wholly or partially performing any duties or obligations under the Order. "Force Majeure" shall inter alia include the following: act of government, war (whether declared or not), invasion, act of foreign or internal enemies, rebellion, terrorism, revolution, insurrection, military, or usurped power, civil war, riot, munitions of war, sabotage, natural catastrophes such as earthquake, hurricane, typhoon, epidemics, pandemics, volcanic activity, adverse severe forces of nature or Acts of God. Provided that, the following events shall not be construed as a Force Majeure: (a) financial distress of the Supplier / Service Provider / Contractor; (b) weather conditions, regardless of severity; (c) breakdown of any equipment, plant or machinery used by the Supplier / Service Provider / Contractor; (d) consequences arising out of non-compliance with any Applicable Law by the Supplier / Service Provider / Contractor or the Supplier's / Service Provider's / Contractor's inability to obtain any permit, quota, license, clearance from any authority; (e) reduction, depletion, shortage, curtailment, or cessation of Supplier 's / Contractor's Supplies, fuel, labour or reserves; and/ or, (f) strike/ stoppage of operations by the personnel of the Supplier / Service Provider / Contractor; (g) any other event, caused or is attributable to the Supplier's/ Service Provider's / Contractor's acts/ omissions or which could have been prevented by the Supplier/ Service Provider / Contractor.

14.2 If either Party is prevented from performing any of its obligations by Force Majeure event, such Party shall give to the other Party a written notice within 14 (fourteen) days of occurrence of such events describing its effects supported by authentic evidence that are verifiable. On giving such notice, the affected Party shall be wholly or partially excused from the performance of its obligation to the extent it is so prevented by the Force Majeure condition. The Parties shall subsequently evaluate the effects and, if necessary, shall extend the Term accordingly in writing.

14.3 The affected Party shall use all reasonable efforts to minimize any delay in its performance due to the occurrence of Force Majeure. The Parties shall bear their respective costs and expenses resulting out of such occurrence of Force Majeure as well as minimizing any delay.

14.4 If the period of non-performance or delay exceeds beyond 60 (sixty) days and the performance could not be resumed under any circumstances, then both Parties shall consult and agree on the necessary arrangement for further implementation of the Works, including termination.

15. Statutory and Ethical Compliance with Applicable Laws:

15.1. The Supplier / Service Provider / Contractor shall perform its obligations and duties diligently, prudently, honestly, efficiently and with sufficient amount of care and caution as is necessary for security and safety, reputation etc. in relation to the property and goodwill of Buyer.

15.2. The Supplier / Service Provider / Contractor will comply with the provisions of all Applicable Laws (including but not limited to international trade laws, statutes, ordinances, rules and regulations applicable to the scope agreed hereunder) and shall obtain all necessary and applicable clearances under the Applicable Laws.

15.4 The Supplier / Service Provider / Contractor understands that all business and other dealings, direct and indirect with embargoed or sanctioned entities are expressly prohibited. The Supplier / Service Provider / Contractor is responsible for screening all clients / end users with which the Supplier / Service Provider / Contractor plans to do business or doing business and other dealings against the lists of embargoed / restricted entities maintained by the U.S., E.U. and U.N. and any other applicable jurisdictions. The Supplier / Service Provider / Contractor must collect information on the end-user, end-use and ultimate destination for every client and ensure that no project or client involves any embargoed or sanctioned country, person or entity and understands that all business and other dealings, direct and indirect with embargoed entities are expressly prohibited, The Supplier / Service Provider / Contractor shall give a declaration in this regard to the Company in each case. and otherwise also to ensure that it is fully complied with all such need compliances.. The Parties acknowledge that all supplies and/or documents submitted within the scope of this GTC or Order may be subject to applicable export law and regulations including US Export control regulations. The Parties undertakes to strictly comply with all applicable requirements under such

Thanking You

Yours sincerely,

FOR JSW STEEL LIMITED



legislation and regulations and, in particular, requirements in terms of export control, codes of conduct, export permits, manuals and instructions and in case of any failure or omission, shall immediately inform the Buyer.

The Supplier / Service Provider / Contractor undertakes to have retention policy of the required documents in compliance with Applicable Laws or good industry practice (including laws or practices applicable to corporate governance or record keeping).

15.5 The Supplier / Service Provider / Contractor undertakes to comply with all Applicable Laws/ statutes/ directives or regulations relating to anti bribery, anti-corruption laws and shall promptly notify Buyer of any actual or suspected violation / breach and provide all required information in this regard. Upon the occurrence of an actual or suspected breach, Buyer shall have the option to take such steps as it deems necessary to protect its interests including termination of this Order without damages or other sanctions including blacklisting.

15.6 Buyer is an environment friendly company and the Supplier / Service Provider / Contractor undertakes to strictly follow and comply with all Applicable Laws and good industry practice, directives and policy with respect to protection of environment, health and safety, as may be applicable or otherwise prescribed by Buyer.

15.7 If the Works requires the performance or any part thereof to be carried on the site of Buyer, then the Supplier / Service Provider / Contractor shall ensure that no scrap, wastage of any article, hazardous materials etc. is left behind at the site. The disposal of such items as stated above should be undertaken by the Supplier / Service Provider / Contractor at its sole cost, as per Applicable Laws and good industry practices.

15.8 The Supplier / Service Provider / Contractor shall at sole cost strictly comply with all relevant and Applicable Laws including labor laws and codes, as amended from time to time (as applicable) including but not limited to obtaining labor and any other license/permits/approvals etc., payment of minimum wages, provident fund, workmen compensation, payment of wages, labor license, work contract or any other statutory compliance as applicable employees and engaged workmen. Supplier's / Service Provider's / Contractor's workmen and all such personnel as may be engaged by it in relation to the performance, it shall at its own cost maintain all applicable records including any applicable register, or clearances that shall be required to be maintained or returns to be filed with the authorities in this regard.

15.9 The Supplier / Service Provider / Contractor shall assist in any enquiry, investigation or audit initiated by the Buyer and/or any Authority and disclose necessary documents and information to support and demonstrate the Supplier's / Service Provider's / Contractor's compliance with the requirement under this any legal provision and Applicable Law and policy of the Buyer. Any costs or expenses incurred in this regard, shall be solely on the account of the Supplier / Service Provider / Contractor.

15.10 The Supplier / Service Provider / Contractor shall ensure that all the personnel engaged by it shall be more than 18 years of age and no one shall be of unsound mind and unhealthy having any communicable disease.

15.11 The Supplier / Service Provider / Contractor shall be responsible for all losses or damages caused either directly or indirectly to the Buyer due to theft, pilferage, breakage, shortage or damage to the material, property or Work and any accident, injury, sickness or death of their personnel or otherwise during performance of the Works. The Supplier / Service Provider / Contractor shall cooperate and comply with Buyer's instructions and immediately complete the necessary legal procedures. The Supplier / Service Provider / Contractor shall be solely liable for payment of necessary compensation, if required or directed, under the provisions of Applicable Laws including labor laws/Code as and when applicable.

15.12 The costs, expenses or damages incurred by the Buyer shall be recovered from the Contractor/ Service Provider / Supplier and the Contractor/ Service Provider / Supplier shall further be liable to pay such penalty as shall be determined and deemed to be fit by the Buyer in accordance with the applicable policies and rules of the Buyer for noncompliance, negligence or default or otherwise. This is without prejudice to other rights and remedies of Buyer including but not limited to termination of the Order and / or debarment / blacklisting of Contractor/ Service Provider / Supplier for future engagement.

15.13 The Supplier / Service Provider / Contractor shall abide by Buyer's disciplinary rules and regulations, safety and security guidelines, code of conduct and general business principles as annexed hereto or as prescribed from

Thanking You
Yours sincerely,
FOR JSW STEEL LIMITED



time to time. Further, the Buyer's Supplier Code of Conduct has been made available at (<https://www.jsw.in/groups/supply-chain-sustainability>) and deemed to be incorporated by reference. The Supplier / Service Provider / Contractor shall read, understand and be solely responsible to strictly comply with the said code and violation thereof. The acceptance of Order shall be deemed acceptance of Supplier's Code of Conduct. The Supplier / Service Provider / Contractor shall check the above weblink from time to time in order to follow and comply with the updated codes and policies.

15.14 The Supplier/ Service Provider / Contractor hereby acknowledges and agrees that any consequence or risk resulting from any non-compliance of either any statutory provisions, approvals, mandates or any of the Buyer's applicable policies shall be at the sole risk, cost and expense of the Supplier/ Service Provider / Contractor.

15.15 The Supplier / Service Provider / Contractor undertakes to furnish its actual permanent as well as present address in all statutory records and shall not use Buyer's address in any statutory records as their address. Supplier / Service Provider / Contractor further undertake that under no circumstances their liabilities for contravention / non-compliance under any Applicable Laws including the labour laws/Code (as applicable) are enforceable on Buyer, as principal employer and in any such eventuality, Buyer, shall have the right to charge or recover such liabilities with interest and penalty from the Supplier / Service Provider / Contractor and the Supplier / Service Provider / Contractor undertakes to honor the same without any delay and demure of any kind.

15.16 The Supplier / Service Provider / Contractor acknowledges that the operative provisions of the Digital Personal Data Protection Act, 2023 may come into force during the term hereof, and undertakes to furnish sufficient evidence, in advance: (a) demonstrating its compliance, including through independent audit and certification as may be required under Applicable Law, at its sole cost and risk, therewith; and (b) implementation of such measures or mechanisms as may be required to ensure compliance with the said enactment, including, without prejudice, enabling correction, erasure, or deletion of Personal Data, reporting any Personal Data breach, or address any grievances or requests from data principals, each as defined under such legislation, as more fully detailed in Clause 16 below.

16 Data Protection and Privacy:

16.1 The Supplier / Service Provider / Contractor may Process Personal Data received under these GTC: (a) only in the manner specified under this GTC; and (b) in compliance with all requirements under Applicable Law, including but not limited to obtaining appropriate consents as may be required under Applicable Law.

16.2 The Supplier / Service Provider / Contractor shall promptly, and in any event no later than forty-eight (48) hours from being informed by the Buyer, carry out such actions as may be necessary (including deletion, modification and/or return of Personal Data) to address any grievances or requests from data principals, whose Personal Data is being Processed by the Supplier / Service Provider / Contractor under this GTC or the Buyer.

16.3 The Supplier / Service Provider / Contractor shall implement reasonable security safeguards in relation to Personal Data which it receives or gains access to pursuant to this GTC, to ensure its security against unauthorized Processing and loss including but not limited to access controls, maintaining logs, implementing authentication measures, maintaining backups and other business continuity measures, and other appropriate data security measures that are commensurate with the business operations performed, the data assets sought to be Processed or protected, and the sensitivity of the Processing undertaken. Such safeguards and measures shall comply, as a minimum, with (a) the measures to be specified by Buyer in writing from time to time, (b) such higher standards as may be required under Applicable Law, and (c) such higher standards as may be adopted by reputed processors carrying out the nature of Processing being carried out by the Supplier / Service Provider / Contractor .

16.4 In the event of any cybersecurity incident (as defined under Applicable Law), the Supplier / Service Provider / Contractor shall: (a) immediately, and no later than half the period for reporting prescribed under Applicable Law, notify the Buyer of such incident; (b) provide the Buyer with all relevant information available with it, in relation to the incident; (c) promptly initiate appropriate measures to address, resolve and/or mitigate the effects of the incident; and (d) cooperate fully with the Buyer in fulfilment of its statutory obligations, including notification to governmental authorities and affected data principals.

Thanking You
Yours sincerely,
FOR JSW STEEL LIMITED



16.5 The Supplier / Service Provider / Contractor shall not disclose or transfer Personal Data to any third party (including affiliates and subcontractors) without the Buyer's prior written consent. Further, the Supplier / Service Provider / Contractor shall ensure such third party is bound by written obligations no less stringent than those set out in this GTC.

16.6 Upon the Buyer's request, the Supplier / Service Provider / Contractor shall enter into a separate data processing addendum with the Buyer to delineate the measures and obligations to be undertaken by the Supplier / Service Provider / Contractor in Processing Personal Data and ensuring compliance with Applicable Law and the Buyer's policies.

17 Indemnity:

The Supplier / Service Provider / Contractor agrees to indemnify, defend and hold harmless Buyer, its respective directors, officers, employees, affiliates, representatives, parent and subsidiaries, from any and all claims, cost, expenditure, fines, losses, actions, damages, expenses, demands, liabilities, charges, actions, suits, proceedings, statutory penalties and proceedings of third parties together with all legal fees and all other liabilities brought against or incurred by Buyer or any of them arising out of :

(a) bodily injury, sickness, disease, accident or death to any person, medical expenses;

(b) willful default, fraud, negligence;

(c) loss or damage to any property due to theft, pilferage, breakage, shortage, vandalism or otherwise, resulting from any cause arising out of and from any defect in the Goods and Services or from the failure of the goods or services to comply with the warranties hereunder;

(d) inaccuracy, breach or non-fulfillment of any of the representations or warranties or obligations of the Supplier / Service Provider / Contractor in this Order;

(e) non-compliance with Applicable Law;

(f) any claim of goods and services, Supplier's breach of any of its obligations, representations, conditions or terms and conditions of this GTC, order or any definitive agreement violates;

(g) Infringement of third/any party intellectual property rights or any Intellectual Property Rights of the Buyer;

(h) breach of confidentiality obligations under Clause 22

breach of data protection obligations under Clause 16; and

(i) any loss or damage arising out of delay in uploading the invoice and/or delay in submission/furnishing the data as may be asked for by the authorities and/or uploading invoices with incorrect data and/or correcting the data in the invoice within stipulated time in the GSTN.

18 Insurance:

The Supplier / Service Provider / Contractor shall, at its own cost and expenses, obtain and maintain a comprehensive insurance policy to cover all risks and liability of the Supplier/Service Provider/Contractor at all times under the Applicable Law.

The Insurance coverage should be relevant to the scope of work including but not limited to general liability insurance which should cover risk against the personal injury, accident against Suppliers / Service Providers / Contractors personnel, agents, representatives, ESI, workmen compensation, cyber security incidents, third party liability as well as Suppliers / Service Providers / Contractors materials, equipment, brought on site for performance of scope. Supplier / Service Provider / Contractor shall submit the copy of the insurance policies to the Company's / Buyer's office.

19 Documents, Inspection and Audit: The Supplier / Service Provider / Contractor shall permit Buyer, or its representatives, to inspect the relevant accounts and records relating to the Works to verify compliance, upon prior notice by Buyer. The Supplier / Service Provider / Contractor shall preserve and maintain all the records, books of accounts and other related documents of evidence for statutory compliance in respect of the Works in accordance with the Applicable Law and produce the same as and when required by the government and regulatory authorities.

Thanking You

Yours sincerely,

FOR JSW STEEL LIMITED



20 **Set-Off / Cross Default:** The Buyer shall at all times be entitled to set off any present or future claims the Buyer may have against the Supplier / Service Provider / Contractor under this GTC or Order or otherwise any debt. The Buyer has a right to terminate the Order in the event of any default or breach committed by the Supplier / Service Provider / Contractor in any other contract, subcontract, work order, purchase order or any other agreement executed between Buyer and the Supplier / Service Provider / Contractor and adjust the amount of damages without any notice.

21 **"Intellectual Property Rights":** shall mean and include all proprietary rights, title, interest in industrial or intellectual property rights conferred by law or equity in any one or more jurisdictions, including inventions, patents, utility models, other names, logos, trademarks and service marks design rights, circuit layouts, rights in undisclosed or Confidential Information (such as know-how or trade secrets) and other rights of a like nature, whether or not registered or registrable, and whether arising before, on or after the date of this GTC or Order or otherwise included in any material provided to the Supplier / Service Provider / Contractor by or on behalf of the Buyer, including any goodwill or other value generated in connection with their use thereof and the copyrights and other intellectual property rights provided to the Supplier / Service Provider / Contractor by or on behalf of the Buyer. The Intellectual Property Rights shall at all times be solely owned by Buyer. The Supplier / Service Provider / Contractor shall have no right to use, or apply any deceptively similar Intellectual Property Rights of the Buyer in any part of the world directly or indirectly, except in such manner and at such times as are expressly approved by the Buyer.

22 **Confidentiality:** The Supplier / Service Provider / Contractor shall maintain confidentiality and shall not disclose or divulge or process any Confidential Information including any data/information as per the Applicable Law of Buyer or its subsidiary / affiliates / group company, law.

The Supplier / Service Provider / Contractor agrees and undertakes to treat as strictly confidential and protect all the Confidential Information and documents received or obtained by it or its advisors, officers, directors, employees, representatives regarding the Buyer or its affiliates, its management, business or financing sources, including any process and/or Personal Data (under the provisions of the Digital Personal Data Protection Act, 2023, & respective Rules made thereunder or any other Applicable Law) or any data/information as acquired by Supplier / Service Provider / Contractor during the course of performance under the Order or this GTC or thereafter without the prior written consent of the Buyer and will not at any time hereafter make public, disclose or divulge such Confidential Information to any third party.

The Supplier / Service Provider / Contractor recognize and acknowledge that Confidential Information is of a special, unique and extraordinary character to the Buyer and that any disclosure, misappropriation, or unauthorized use of such Confidential Information by Supplier / Service Provider / Contractor cannot be fully compensated and that, further any such disclosure, misappropriation or unauthorized use of the Confidential Information may cause irreparable injury to the Buyer and/or its Affiliates. The Supplier / Service Provider / Contractor expressly agrees, therefore, that the Buyer, in addition to any rights and remedies it may have under this GTC/Order or at law or in equity, may be entitled to claim damages, seek injunctive and other equitable relief as may be allowed by any competent court to prevent the breach, or the further breach of any of the terms and provisions hereof.

23 **Assignment and Subcontracting:** The Supplier / Service Provider / Contractor shall not assign or sub- contract any of its rights or obligations under this Order/GTC or any portion thereof, or any benefit or money accruing to it thereunder, without prior written consent of authorized person of Buyer. Buyer may however assign this Order without any notice to any of its group company and/or any third party as Buyer may deem necessary. In the event, the Contractor/ Service Provider / Supplier is engaging subcontractor for performance of the portion of the Order with prior written consent of authorized person of the Buyer, then, the Supplier / Service Provider / Contractor shall ensure that their subcontractor shall be bound mutatis-mutandis by all the terms and conditions of this Order

Thanking You

Yours sincerely,

FOR JSW STEEL LIMITED



including GTC, statutory compliances, safety and security guidelines and such other terms as applicable to the Contractor/ Service Provider / Supplier. The Supplier/ Service Provider/ Contractor shall provide a copy of this GTC to the sub-contractor and shall enter into an agreement with back to back stipulations of the terms agreed hereunder and ensure compliance thereof. The Contractor/ Service Provider / Supplier shall continue to be solely responsible for any non-compliance, non-performance or breach by its subcontractors.

24 Step-in Rights: If the scope requires procurement of supply from sub-suppliers, subcontracting the portion of performance, or such subcontracting is agreed upon by Buyer, then Buyer upon its reasonable determination, in relation to any event of default stated in this GTC or any non-payment of the Supplier / Service Provider / Contractor to the subcontractor or sub-suppliers, shall with 15 days prior written notice, have the right to take over the balance / part of the performance and directly engage any third party or the concerned sub-contractor, release payments on account of Supplier / Service Provider / Contractor to the subcontractor or sub-suppliers, as well as complete the balance performance at the risk, cost, expenses of the Supplier / Service Provider / Contractor.

25 Waiver: No waiver shall be effective unless made in writing and expressly agreed by the waiving party.

26 Severability: If for any reason whatsoever, any provision of the Order or this GTC is or becomes, or is declared by a court to be void, invalid, illegal or unenforceable, then such provisions shall be deemed to have been severed or removed, without any prejudice to the continuance in force and effect of all other provisions of the Order or this GTC.

27 Relationship: This Order is entered into strictly on principal to principal basis. This Order shall not operate to constitute any joint venture or either party as the agent, partner, employer or employee of the other or representative of the other and none of the employees/personnel of either party shall be entitled to claim any status as the employees of the other party.

28 Amendment: No modification or amendment to the Order shall be valid unless agreed in writing by both the Parties.

29 Governing Law and Dispute Resolution:

For Domestic Transaction valued up to Rs. 10 Crores

a) This Order shall be governed by and interpreted in accordance with the substantive laws of India, excluding any choice of law rules which would refer the matter to the laws of another jurisdiction. The parties agree that the United Nations Convention on Contracts for the International Sale of Goods is specifically excluded from application to this GTC or the transactions contemplated by this GTC. Subject to any dispute resolution mechanism, the courts at Mumbai shall have exclusive jurisdiction over the matter.

b) For settling any dispute(s) between the Parties arising out of or in connection with this Order or GTC, the Parties shall discuss the same mutually to resolve such disputes amicably between themselves within a period of 30 working days (or such extended period as the Parties may agree to in writing) on receipt of a notice for mutual resolution under this clause. In the event that the dispute is not resolved amicably, then, either Party may refer the dispute to Mediation as per Section 12A of the Commercial Courts Act 2015, If the Parties fail to amicably settle the dispute(s) as stated above and also the Mediation fails, then the Parties shall refer such dispute(s) to the courts having jurisdiction.

For Domestic Transaction valued above Rs. 10 Crores and up to Rs. 25 Crores

Thanking You
Yours sincerely,
FOR JSW STEEL LIMITED



- a) This Order shall be governed by and interpreted in accordance with the substantive laws of India, excluding any choice of law rules which would refer the matter to the laws of another jurisdiction. The parties agree that the United Nations Convention on Contracts for the International Sale of Goods is specifically excluded from application to this GTC or the transactions contemplated by this GTC. Subject to any dispute resolution mechanism, the courts at Mumbai shall have exclusive jurisdiction over the matter.
- b) For settling any dispute(s) between the Parties arising out of or in connection with this Order or GTC, the Parties shall discuss the same mutually to resolve such disputes amicably between themselves within a period of 30 working days (or such extended period as the Parties may agree to in writing) on receipt of a notice for mutual resolution under this clause. If the Parties fail to amicably settle the dispute(s) as stated above, then the Parties shall refer such dispute(s) to arbitration.
- c) The arbitration proceedings shall be conducted in accordance with the Arbitration and Conciliation Act, 1996 ("Act"), as amended from time to time and in force as on the date of commencement of the arbitration proceedings. The arbitration proceedings shall be conducted by sole arbitrator to be appointed with mutual consent of the Parties (referred to as "Arbitral Tribunal"). The seat and venue of arbitration shall be Mumbai and the language of arbitration shall be English. The Parties agree to conduct the arbitration proceedings remotely and virtually through video conferencing. The provision pertaining to 'Fast Track Proceedings' prescribed under section 29B of the Act shall be applicable to the arbitration proceedings invoked under this Clause.
- d) The cost of the arbitration proceedings shall be borne equally by the Parties, unless otherwise determined by the Arbitral Tribunal. Except for the matters under dispute before Arbitral Tribunal, the Parties shall continue to perform and fulfil their respective rights and obligations under the Order or this GTC unless the same is impossible without resolution of the said dispute.

For Domestic Transaction valued above Rs. 25 Crores

- a) This Order shall be governed by and interpreted in accordance with the substantive laws of India, excluding any choice of law rules which would refer the matter to the laws of another jurisdiction. The parties agree that the United Nations Convention on Contracts for the International Sale of Goods is specifically excluded from application to this GTC or the transactions contemplated by this GTC. Subject to any dispute resolution mechanism, the courts at Mumbai shall have exclusive jurisdiction over the matter.
- b) For settling any dispute(s) between the Parties arising out of or in connection with this Order or GTC, the Parties shall discuss the same mutually to resolve such disputes amicably between themselves within a period of 30 working days (or such extended period as the Parties may agree to in writing) on receipt of a notice for mutual resolution under this clause. If the Parties fail to amicably settle the dispute(s) as stated above, then the Parties shall refer such dispute(s) to arbitration.
- c) The arbitration proceedings shall be conducted in accordance with the Arbitration and Conciliation Act, 1996 ("Act"), as amended from time to time and in force as on the date of commencement of the arbitration proceedings. The arbitration proceedings shall be conducted by three arbitrators, wherein each Party shall appoint one arbitrator and the third arbitrator shall be appointed jointly by the two arbitrators so appointed by the Parties and such third arbitrator shall act as the 'Presiding Arbitrator' (collectively referred to as "Arbitral Tribunal"). The seat and venue of arbitration shall be Mumbai and the language of arbitration shall be English. The Parties agree to conduct the arbitration proceedings remotely and virtually through video conferencing.
- d) The cost of the arbitration proceedings shall be borne equally by the Parties, unless otherwise determined by the Arbitral Tribunal. Except for the matters under dispute before Arbitral Tribunal, the Parties shall continue to perform and fulfil their respective rights and obligations under the Order or this GTC unless the same is impossible without resolution of the said dispute.

For International (Import-based) Transaction valued up to Rs. 10 Crores

Thanking You
Yours sincerely,
FOR JSW STEEL LIMITED



a) This Order shall be governed by and interpreted in accordance with the substantive laws of India, excluding any choice of law rules which would refer the matter to the laws of another jurisdiction. The parties agree that the United Nations Convention on Contracts for the International Sale of Goods is specifically excluded from application to this GTC or the transactions contemplated by this GTC. Subject to any dispute resolution mechanism, the courts at Mumbai shall have exclusive jurisdiction over the matter.

b) For settling any dispute(s) between the Parties arising out of or in connection with this Order or GTC, the Parties shall discuss the same mutually to resolve such disputes amicably between themselves within a period of 30 working days (or such extended period as the Parties may agree to in writing) on receipt of a notice for mutual resolution under this clause. In the event that the dispute is not resolved amicably, then, either Party may refer the dispute to Mediation as per Section 12A of the Commercial Courts Act 2015, If the Parties fail to amicably settle the dispute(s) as stated above and also the Mediation fails, then the Parties shall refer such dispute(s) to the courts having jurisdiction.

For International (Import-based) Transaction valued above Rs. 10 Crores and up to Rs. 25 Crores

a) This Order shall be governed by and interpreted in accordance with the substantive laws of India, excluding any choice of law rules which would refer the matter to the laws of another jurisdiction. The parties agree that the United Nations Convention on Contracts for the International Sale of Goods is specifically excluded from application to this GTC or the transactions contemplated by this GTC. Subject to any dispute resolution mechanism, the courts at Singapore shall have exclusive jurisdiction over the matter.

b) For settling any dispute(s) between the Parties arising out of or in connection with this Order or GTC, the Parties shall discuss the same mutually to resolve such disputes amicably between themselves within a period of 30 working days (or such extended period as the Parties may agree to in writing) on receipt of a notice for mutual resolution under this clause. If the Parties fail to amicably settle the dispute(s) as stated above, then the Parties shall refer such dispute(s) to arbitration.

c) The arbitration proceedings shall be conducted in accordance with the rules of Singapore International Arbitration Centre (SIAC Rules), as amended from time to time and in force as on the date of commencement of the arbitration proceedings. The arbitration proceedings shall be conducted by sole arbitrator to be appointed with mutual consent of the Parties (referred to as "Arbitral Tribunal"). The seat and venue of arbitration shall be Singapore and the language of arbitration shall be English. The Parties agree to conduct the arbitration proceedings remotely and virtually through video conferencing. The provision pertaining to Expedited Procedure and/or Emergency Arbitration as prescribed under the SIAC Rules shall be applicable to the arbitration proceedings invoked under this Clause.

d) The cost of the arbitration proceedings shall be borne equally by the Parties, unless otherwise determined by the Arbitral Tribunal. Except for the matters under dispute before Arbitral Tribunal, the Parties shall continue to perform and fulfil their respective rights and obligations under the Order or this GTC unless the same is impossible without resolution of the said dispute.

For International (Import-based) Transaction valued above Rs. 25 Crores

a) This Order shall be governed by and interpreted in accordance with the substantive laws of India, excluding any choice of law rules which would refer the matter to the laws of another jurisdiction. The parties agree that the United Nations Convention on Contracts for the International Sale of Goods is specifically excluded from application to this GTC or the transactions contemplated by this GTC. Subject to any dispute resolution mechanism, the courts at Singapore shall have exclusive jurisdiction over the matter.

b) For settling any dispute(s) between the Parties arising out of or in connection with this Order or GTC, the Parties shall discuss the same mutually to resolve such disputes amicably between themselves within a period of 30 working days (or such extended period as the Parties may agree to in writing) on receipt of a notice for mutual

Thanking You

Yours sincerely,

FOR JSW STEEL LIMITED



resolution under this clause. If the Parties fail to amicably settle the dispute(s) as stated above, then the Parties shall refer such dispute(s) to arbitration.

c) The arbitration proceedings shall be conducted in accordance with the rules of Singapore International Arbitration Centre (SIAC Rules), as amended from time to time and in force as on the date of commencement of the arbitration proceedings. The arbitration proceedings shall be conducted by three arbitrators, wherein each Party shall appoint one arbitrator and the third arbitrator shall be appointed jointly by the two arbitrators so appointed by the Parties and such third arbitrator shall act as the 'Presiding Arbitrator' (collectively referred to as "Arbitral Tribunal"). The seat and venue of arbitration shall be Singapore and the language of arbitration shall be English. The Parties agree to conduct the arbitration proceedings remotely and virtually through video conferencing.

d) The cost of the arbitration proceedings shall be borne equally by the Parties, unless otherwise determined by the Arbitral Tribunal. Except for the matters under dispute before Arbitral Tribunal, the Parties shall continue to perform and fulfil their respective rights and obligations under the Order or this GTC unless the same is impossible without resolution of the said dispute.

30 Entire Understanding: The Order along with its Annexures shall supersede and override all prior negotiations, proposals, representations, commitments, understandings or agreements between the parties, written or verbal or anything to the contrary contained in any other documents.

31 Non-Exclusivity: The Supplier / Service Provider / Contractor is engaged on a non-exclusive basis. This does not in any way preclude Buyer's right to enter into similar arrangements/ orders/ agreements with any other party as Buyer may deem fit.

32 Performance of Works for Affiliates/ other Units of the Buyer: Any Affiliate/ other unit of the Buyer shall be entitled to avail the Supplies / Services from the Supplier / Service Provider / Contractor on the same terms and conditions.

33 Cost and Expenses: Each Party will bear its own costs and other expenses in connection with this Order and consummation of the transactions hereunder. All stamp duty, transfer fees and other expenses that may be payable on this Order / GTC and all other deeds, documents or writings to be executed in relation to the Order shall be solely borne and paid by the Supplier/ Service Provider/ Contractor.

34 Notices and Communications: Any notice or communication, shall be made in writing in English language and shall be delivered personally or via courier or by registered post or by e-mail at such addresses as provided by the Parties.

Any subsequent change in the address of either Party shall be duly communicated to the other Party at the earliest possible instance.

35 Press Releases and Public Announcements: No formal or informal public announcement or press release which makes reference to the Buyer and / or the terms and conditions of this Order or GTC or any of the matters referred to herein, shall be made or issued by the Service Provider/ Contractor/ Supplier without the prior written approval of the Buyer. If the Service Provider/ Contractor/ Supplier is obliged to make or issue any such announcement or press release mentioned in this Clause pursuant to a requirement by law or authority, the Service Provider/ Contractor/ Supplier so obliged shall consult the Buyer as regards the contents of the said announcement or disclosure and take written approval of authorised person of the Buyer, before it is made or issued to public.

36 Survival: Upon expiry or termination of the Order, only the rights and obligations accrued prior to such expiry or termination shall survive. Additionally, stipulations and obligations relating to limitation of liability, Insurance

Thanking You

Yours sincerely,

FOR JSW STEEL LIMITED



coverage, risk purchase, confidentiality, indemnity, dispute resolution, jurisdiction, governing law, miscellaneous shall remain in full force and survive any termination/ expiry of the Order.

37 Cumulative Rights: Notwithstanding anything specifically mentioned in this GTC, all rights and remedies available with the Buyer under this GTC shall be without prejudice to and in addition to any other right and remedies available with the Buyer under law and equity.

Liquidated Damage Clause :

APPLICABLE 0.5% PER WEEK AND MAXIMUM UP TO 7.5%

Thanking You
Yours sincerely,
FOR JSW STEEL LIMITED



Plant GST No : 22AAACJ4323N1ZQ ; PAN : AAACJ4323N ; CIN : L27102MH1994PLC152925
